

22STCV15510 22STCV15510

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Case Number: 22STCV15510 Hearing Date: September 1, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

JC 2020 CORP,

Plaintiff,

vs.

NEW HAMPSHIRE BBL, LLC,

et al.,

Defendants.

Case No.:

22STCV15510

Hearing Date:

September 1, 2026

Hearing

Time: 8:30 a.m.

[TENTATIVE]

ORDER RE:

DEFENDANT ROBERT

LEE'S MOTION FOR LEAVE TO FILE FIRST AMENDED CROSS-COMPLAINT

AND RELATED CROSS-ACTION

Background

Plaintiff JC 2020 Corp. filed this action on May 10, 2022, against Defendants New Hampshire BBL, LLC ("New Hampshire") and Robert Lee ("Lee"), an individual dba Landpac Properties. JC 2020 filed the operative first amended complaint ("FAC") on July 27, 2022, asserting five causes of action for (1) breach of written contract, (2) promissory estoppel, (3) fraudulent concealment, (4) fraudulent misrepresentation, and (5) fraudulent transfer.

On July 20, 2022, Lee and New Hampshire filed a cross-complaint against Cross-Defendants JC 2020 Corp., Jeannie Yoon, Benjamin Ahn, and James Mortensen ("Mortensen"), asserting four causes of action for (1) indemnification, (2) apportionment of fault, (3) intentional tort, and (4) intentional tort.

On January 14, 2026, the Court granted Lee's motion to sever Cross-Complainants Lee and New Hampshire from the Cross-Complaint.

Jury trial is set in this action for September 16, 2026. Discovery in this case is currently closed.

On August 21, 2026, the Court denied Lee's ex parte motion to continue the trial date.

Lee now moves to file a First Amended Cross-Complaint ("FACC"). Mortensen opposes. Lee replied.

Legal Standard

Pursuant to Code of Civil Procedure

section 473, subdivision (a)(1), “[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading.” Amendment may be allowed at any time before or after commencement of trial. ((Code Civ. Proc., § 576.) “[T]he court’s discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” ((Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428 [internal citations omitted].) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” ((Morgan v. Superior Court of Los Angeles County (1959) 172 Cal.App.2d 527, 530.)

Prejudice includes “delay in trial, loss of critical evidence, or added costs of preparation.” ((Solit v. Tokai Bank (1999) 68 Cal.App.4th 1435, 1448.) However, “even if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial.” ((Roemer v. Retail Credit Co. (1975) 44 Cal.App.3d 926, 939-940.) In most cases, the factors for timeliness are: (1) “lack of diligence in offering the amendment after knowledge of the facts” and (2) “effect of the delay on the adverse party.” ((Id. at p. 940.)

Ordinarily, the court will not consider the validity of the proposed amended pleading in ruling on a motion for leave since grounds for a demurrer or motion to strike are premature; however, the Court does have discretion to deny leave to amend where “a proposed amendment [fails] to state facts sufficient to constitute a cause of action” and “the insufficiency could not be cured by further appropriate amendment.” (California Casualty General Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 280-281 (California Casualty), overruled on other grounds by Kransco v. American Empire Surplus Lines Ins. Co. (2000) 23 Cal.4th 390, 403-406.)

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments. ((Cal. Rules of Court, rule 3.1324(a)(1).) The motion must also state what allegations are proposed to be deleted or added, by page, paragraph, and line number. (Cal. Rules of Court, rule 3.1324(a)(2)-(3).) Finally, “[a] separate declaration must accompany the motion and must specify: (1) The effect of the amendment; (2) Why the amendment is necessary and

proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier." (Cal. Rules of Court, rule 3.1324(b), emphasis added.)

Discussion

As a preliminary matter, the Court finds that Lee did not comply with the procedural requirements of California Rules of Court, rule 3.1324. As noted above, the "[a] motion to amend a pleading before trial must ... [s]tate what allegations in the previous pleading are proposed to be deleted [or added], if any, and where, by page, paragraph, and line number, the deleted [or additional] allegations are located." (Cal. Rules of Court, rule 3.1324(a)(2)-(3), emphasis added.) Included with Lee's exhibits, and attached as Exhibit A, is the proposed FACC. The operative Cross-Complaint is attached as Exhibit E. Although Lee includes both documents, he does not clearly set forth what allegations he is adding and omitting, as required by California Rules of Court, rule 3.1324(a)(2)-(3). Lee's failure to comply with California Rules of Court warrants denial on this basis.

Regarding the merits of

Lee's motion, Lee attests the following: "First, the effect of the amendment. This Court ruled on May 16, 2023, on four causes of action put forth by Cross-Complainants Robert Lee and New Hampshire BBL, LLC. In the present writing Cross-Complainant Robert Lee dismisses the causes of action for indemnity, apportionment and declaratory relief. Further, instead of two causes of action specifying intentional torts against JC2020 Corp, et al., Robert Lee has only one cause of action for intentional infliction of emotional distress. Robert Lee pleads intentional infliction of emotional distress caused by New Hampshire BBL, LLC. The LLC, through Eun Zoo and her daughter, Lorna, perpetrated the fraud that they lawfully represented Ben Lee, and the LLC, in installing Jane Honda at the expense of Robert. Lorna, with Eun Zoo's concurrence, extorted Robert's consent by means of threats to publicize groundless crimes on his part: embezzlement and child molesting. Presented as part of his compulsory cross-complaint, Robert Lee's additional cause of action addresses abuses set into motion by the LLC and its agents. Second, the amendments are necessary and proper in that the cause of action against New Hampshire BBL, LLC, arises out of the same transaction as the original complaint [Code Civ. Proc. § 428.10(b)] and targets the LLC, which is both original

Defendant and original Cross-Complainant. Third, the facts giving rise to the amended allegations were discovered only after lengthy, careful investigation despite no further discovery being permitted by the Court. Fourth, the reason why the request for amendment was not made earlier is that severance had to occur first in order to remove any conflict of interest with the LLC. Robert Lee also tried to secure a reopening of discovery but was not successful.” (Lee Decl., ¶ 16.)

In Mortensen’s opposition, he asserts that Lee does not demonstrate reasonable diligence because “Lee attempts in his moving papers to excuse his multi-year delay by blaming past representation, claiming that ‘severance’ had to occur first, or asserting that he was hampered by earlier counsel conflicts. These excuses are entirely disingenuous. As reflected across multiple dockets—and specifically beginning with his pro per appearances and active motion practice no later than October 14, 2024—Lee has been a sophisticated, active participant and licensed real estate broker (dba Landpac Properties) who has closely directed his own litigation strategy. Furthermore, Lee has known all underlying facts since May 2022. The 500-day gap since the March 2025 status conference (and the 295-day gap since he took over pro per control in October 2024) demonstrates a complete lack of diligence. Vague references to ‘lengthy, careful investigation’ or failed attempts to reopen discovery do not satisfy the strict due diligence requirements of Rule 3.1324.” (Opp., 4:20-5:4.)

Additionally, Mortensen contends that “Lee’s new pleading attempts an improper shift: attempting to penalize Mortensen for his past role as plaintiff’s counsel by tossing in vague, inflammatory allegations of alter ego liability and tortious conduct now that Mortensen appears individually. Permitting Lee to introduce brand-new personal liability theories and collateral grievances on the eve of trial forces Cross-Defendants to chase a constantly shifting target, stripping Mortensen of adequate time for discovery, depositions, and defense preparation.” (Opp., 5:10-16.) Mortensen cites *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 175, where the court expressed that “courts generally should permit amendment to the complaint at any stage of the proceedings, up to and including trial. But this policy applies only [w]here no prejudice is shown to the adverse party. Moreover, even if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial.” (Internal citations and quotations omitted.)

Lee's reply papers do not
address the specific arguments Mortensen set forth in the opposition.

As noted by Mortensen,
Lee does not adequately demonstrate how and when he discovered this
information. Lee's vague reference to "lengthy, careful investigation" does not
apprise the Court of whether Lee acted diligently in seeking this amendment. (See
Lee Decl., ¶ 16.) Mortensen asserts that he will be prejudiced if Lee's motion
is granted because Lee adds new liability theories two weeks before trial. Jury
trial is set in this case for September 16, 2026; discovery is closed; and, on
August 21, 2026, the Court denied Lee's ex parte application to continue trial.
Allowing Lee to file the proposed FACC would certainly lead to delay and
prejudice. Not only is Lee's motion procedurally deficient, but Lee does not
adequately demonstrate that he acted diligently or that amendment is proper.
Accordingly,
the Court does not find that Lee demonstrated grounds for the Court to
grant his motion for leave to file a FACC.

Conclusion

Based on the foregoing, Lee's motion for leave to file a First Amended
Cross-Complaint is DENIED.

Mortensen is ordered to give notice of this Order.

DATED: September 1, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court